

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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RICK JASMIN

Plaintiff,

-against-

CITY OF NEW YORK, P.O. ANDRE GRANT,
DETECTIVE NICHOLAS GAROULAKIS and
DETECTIVE STEVEN YATCHENYA,

Defendants.
-----X

15 CV 2804 (RRM)(SMG)

AMENDED COMPLAINT

JURY DEMAND

Plaintiff, by his attorney, Law Office of Philip Akakwam, P.C., complaining of the defendants, City of New York, P.O. Andre Grant, Detective Nicholas Garoulakis and Detective Steven Yatchenya, (collectively “defendants”), upon information and belief alleges as follows:

INTRODUCTION

1. This is an action at law to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to plaintiff by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985], and arising under the laws and statutes of the City and State of New York.

2. Plaintiff seeks monetary damages for: the false arrest, false imprisonment, use of excessive force and malicious prosecution of Plaintiff and otherwise, for the violation of his federally guaranteed constitutional and civil rights. Plaintiff seeks whatever other relief is appropriate and necessary in order to serve the interest of justice and assure that his remedy is full and complete.

JURISDICTION

3. The jurisdiction of this Court is invoked pursuant to and under 28 U.S.C. Sections 1331 and 1343[3] and [4] in conjunction with the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and under the Fourth and Fourteenth Amendments to the United States Constitution.

4. Jurisdiction is also invoked pursuant to 28 U.S.C. Section 1367, entitled Supplemental Pendent Party Jurisdiction. Plaintiff requests that the Court invoke pendent jurisdiction over any and all claims arising under the laws and Constitution of the State of New York.

5. Venue is proper in this district under 28 U.S.C. § 1391(b).

PARTIES

6. Plaintiff, a black male, is a resident of the City of New York, County of Kings and State of New York.

7. Defendant, City of New York (City) is a municipal entity existing under the laws and Constitution of the State of New York and was the public employer of the defendant police officers through its Police Department - New York City Police Department- and the actions of the police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

8. Defendants P.O. Andre Grant, Detective Nicholas Garoulakis and Detective Steven Yatchenya were police officers employed by Defendant City of New York.

9. Plaintiff is suing the defendant officers in their individual and official capacities.

FACTS COMMON TO ALL CAUSES OF ACTION

10. On or about September 29, 2012, at approximately 10:00 p.m., plaintiff was arrested by the defendants at the corner of Avenue M and Utica Avenue while plaintiff was riding his

bike on the public street.

11. At the time and place aforementioned, plaintiff was returning from a friend's house and was going home when some of the defendant officers pulled up beside him in a car.

12. Upon the car pulling up near plaintiff, defendant officers jumped out of the car and came after the plaintiff. At first there were two officers but three more officers shortly ran up to them and joined in the assault on plaintiff.

13. One of the officers tackled plaintiff while he was still on his bike and threw plaintiff to the ground.

14. Defendant Officer Grant snatched a silver chain from plaintiff's neck and never returned the chain to plaintiff. Defendants failed and/or refused to give any vouchers to plaintiff that would have enabled him to claim his property.

15. While plaintiff was still on the ground, about five officers were all over him. They twisted his arms, pulled him up and pushed him around from one car to the other.

16. The officers arrested plaintiff and placed him in handcuffs. The cuffs were so tight that plaintiff suffered severe pain therefrom for about three days.

17. When plaintiff asked why he was being arrested, the officers told him that they had seen him riding bike on the sidewalk.

18. Thereafter, plaintiff was searched on the street, placed in one of the defendants' vehicle and later transported to the 63rd police precinct.

19. At the precinct, defendant officers claimed that they had stopped plaintiff after they saw him throw a gun. Plaintiff told them that he had no guns and did not throw any gun.

20. Plaintiff was detained at the precinct and later at Central Booking until the next day

when he was brought to court.

21. Plaintiff was charged with Criminal Possession of a weapon in the Second Degree.

22. Upon arraignment, plaintiff was granted bail in the amount of \$5,000 but plaintiff was unable to post bail.

23. Plaintiff had to appear in court on numerous occasions for about two years until July 28, 2014 when all charges brought against plaintiff were dismissed because the defendants did not have any evidence to support the false charges brought against plaintiff.

24. And on or about September 13, 2013, at approximately 7 a.m., three of the defendant officers came to plaintiff's apartment and knocked on the door. When plaintiff's father answered and opened the door, the officers shoved him aside and rushed to plaintiff's room.

25. The officers claimed to have come from the Warrant Squad. They broke down the door to plaintiff's room, went inside and searched the room but found nothing illegal.

26. Then, the officers proceeded to search the entire house and, again they found nothing illegal.

27. After their extensive search yielded nothing, the arresting officer told plaintiff that one Detective Steve had requested that they bring plaintiff to the precinct for questioning.

28. The officers arrested plaintiff, placed him in handcuffs and transported him in their vehicle to the 63rd precinct.

29. Plaintiff was detained at the precinct and later transported to Central Booking from where he was released after the District Attorney declined prosecution for insufficient evidence.

30. Furthermore, on or about August 28, 2014, at approximately 10:30 a.m., plaintiff was arrested in front of his house by a team of about ten (10) police officers without any warrants or

probable cause. Upon information and belief, the officers were part of a Squad Team from the Brooklyn South Gun Unit.

31. At the time of the arrest, the officers told plaintiff that they had found a gun at his home about one week prior to the arrest. However, on the date the officers claimed to have found a gun at plaintiff's home, plaintiff was in detention at Riker's Island in an unrelated case.

32. Plaintiff was handcuffed, searched and thereafter transported to the police precinct where he was detained.

33. Plaintiff was charged with, *inter alia*, criminal possession of a weapon.

34. On January 23, 2015, all criminal charges against plaintiff were dismissed.

35. Plaintiff suffered physical injuries, including but not limited to injury to his wrists, arms and shoulder.

36. And plaintiff suffered and continues to suffer emotional distress, fear, humiliation, embarrassment, shock, loss of liberty, psychological trauma, pain, and damage to reputation as a consequence of the defendants' unlawful conduct alleged herein.

37. Plaintiff suffered violations of his federally guaranteed constitutional and civil rights including rights guaranteed to him under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

38. Defendant Officers acted together and in concert sanctioning and ratifying and otherwise condoning the wrongful actions being taken by each of the defendant Officers in a collective manner and fashion.

39. Plaintiff has no other adequate remedy at law but for this action.

**AND AS FOR A FIRST CAUSE OF ACTION:
42 U.S.C. § 1983 - FALSE ARREST AND IMPRISONMENT**

40. Plaintiff reiterates paragraphs 1 through 39 and incorporates such by reference herein.

41. By their conduct and under color of law, defendant officers deprived plaintiff of his constitutional right to be free from false arrest and false imprisonment.

42. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

**AND AS FOR A SECOND CAUSE OF ACTION:
42 U.S.C. § 1983 - UNREASONABLE AND EXCESSIVE FORCE**

43. Plaintiff reiterates paragraphs 1 through 42 and incorporates such by reference herein.

44. By their conduct and under color of law, defendant officers deprived plaintiff of his constitutional right to be free from excessive and unreasonable force.

45. As a direct and proximate result of the misconduct detailed above, plaintiff sustained the damage herein before stated.

**AND AS FOR A THIRD CAUSE OF ACTION:
42 U.S.C. § 1983 - CONSPIRACY**

46. Plaintiff reiterates paragraphs 1 through 45 and incorporates such by reference herein.

47. Defendant officers and other John Doe police officers acting under color of law, conspired with one another to deprive plaintiff of his constitutional rights, including the rights: to be free from intentional use of unreasonable force; to be free from unlawful searches and seizures; to have access to and seek redress in the courts; and to be free from false arrest and false imprisonment.

48. It was part of the conspiracy that the defendant officers physically assaulted plaintiff while his hands were cuffed behind his back.

49. In furtherance of the conspiracy and in order to cover up the acts of brutality, defendants fabricated and contrived a charge of criminal possession of weapons against plaintiff.

50. Defendant officers submitted false police reports and statements to support and corroborate the fabricated charges lodged against plaintiff.

51. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damage herein before stated.

AND AS FOR A FOURTH CAUSE OF ACTION

(Monell/42 U.S.C. Section 1983: Claim Against Defendant City of New York)

52. Plaintiff reiterates paragraphs 1 through 51 and incorporates such by reference herein.

53. The foregoing violations of plaintiff's federal constitutional rights and resultant injuries were directly and proximately caused by conduct, chargeable to defendant City, amounting to deliberate indifference to the constitutional rights of persons, including Plaintiff, who are investigated, arrested, or prosecuted for alleged criminal activities.

54. The defendant City, through its police department, the NYPD, has developed and maintained policies and customs exhibiting deliberate indifference to the constitutional rights of its citizens, which caused the violations of plaintiff's rights.

55. It was the policy and/or custom of the City to undertake inadequate and improper investigations of civilian complaints of police misconduct and to punish inadequately officers involved in complaints which were substantiated.

56. Both Internal Affairs Bureau (IAB) and the Civilian Complaints Review Board

(CCRB) have substantially failed in their responsibilities to investigate misconduct and to discipline transgressors. The IAB investigations of brutality rarely lead to any administrative trials and, in the rare instances that charges are sustained administratively, the punishment is minimal, lacking any deterrent effect.

57. The defendant City has been on notice for more than a generation that brutality is widespread and that particular reforms need to be implemented. Acts of brutality have been tolerated by the defendant City.

58. Defendant City, acting through the NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is black, on the pretext that they were involved in some illicit activities.

59. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices and/or customs were implemented or tolerated by policymaking officials for defendant City including but not limited to, the New York City Police Commissioner, who knew or should have known that such policies, procedures, regulations, practices and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases.

60. Defendant City failed to provide proper training and/or failed to insure that the training provided was adequately understood in regard to the following tasks which police officers commonly perform:

- (a) The determination of probable cause to make an arrest;
- (b) The duty to take into account the totality of the circumstances in determining the

existence of probable cause to make an arrest;

- (c) The circumstances under which investigative detentions may lawfully occur and the manner in which they may lawfully be executed;
- (d) The very limited circumstances under which a warrantless search may be carried out, and in particular, the warrantless search of a person's home.

61. Defendant City, acting through the NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, the seizure, voucher and/or release of seized properties, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when there is probable cause for such arrest.

62. The policymaking officials at NYPD know or ought to have known that such issues that regularly arise in the investigation and prosecution of criminal cases either present police employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of police employees mishandling such situations and making the wrong choice.

63. The aforementioned policymaking officials knew that the wrong choice by police officers concerning determination of probable cause will frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and cause them constitutional injury.

64. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), the Southern District of New York observed that the City of New York had been accused of racial profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling. And in *Ligon v. City of New York*, 12 Civ. 2274, 2013 U.S. Dist. LEXIS 22383, at *9-*10 (S.D.N.Y. Feb. 14, 2013), the Court determined that the City of New York, acting through the NYPD, engages in illegal and unreasonable stop, frisk, search and seizure. *See also Davis v. City of New York*, 10 Civ. 0699, 2013 U.S. Dist. LEXIS 45601 (S.D.N.Y. March 28, 2013) (same).

65. Recently, a jury determined that officers of the NYPD are permitted, as a policy and/or practice, to fill their arrest quotas by making unlawful arrests. *See Bryant v. City of New York*, Index No. 22011/07 (Sup. Ct. County of Kings Feb. 18, 2011).

66. As a result of inadequate training of police officers on the practical meaning of probable cause for arrest, officers frequently detain and/or arrest citizens based on their hunches, inklings, or mere suspicion and without reasonable or probable cause.

67. As part of its policies, customs and practices, Defendant City has failed to take proper corrective and punitive actions against overreaching police officers thus creating the impression that crime reduction is paramount and triumphs over constitutional rights in all circumstances.

68. Prior to and at the time of the incident alleged herein, the defendant City was aware of the need for more or different training, rules, regulations, investigation and discipline relating to police officers engaged in racial profiling, and was deliberately indifferent to that need.

69. As a direct and proximate result of the City's policies and deliberate indifference, defendants violated plaintiff's constitutional rights causing plaintiff to suffer substantial damages.

AND AS FOR A FIFTH CAUSE OF ACTION
(Negligent Hiring, Training and Supervision Under State Law; Defendant City)

70. Plaintiff reiterates paragraphs 1 through 69 and incorporates such by reference herein.

71. By virtue of the foregoing, defendant City of New York is liable to plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, and discipline its agents, servants and/or employees employed by the NYPD with regard to their aforementioned duties.

72. As a direct and proximate result of the acts and omissions of the defendants described in this Complaint, plaintiff suffered a significant loss of his liberty and violation of his federal constitutional rights, was prevented from attending to his necessary affairs and suffered and continues to suffer significant emotional pain, distress, humiliation and embarrassment.

AND AS FOR AN SIXTH CAUSE OF ACTION: MALICIOUS PROSECUTION

73. Plaintiff reiterates paragraphs 1 through 72 and incorporates such by reference herein.

74. Plaintiff was subjected to malicious prosecution and malicious abuse of the criminal process in violation of his right under the Fifth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

75. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damage herein before stated.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

- i. For compensatory damages in an amount to be determined at trial - against all defendants, jointly and severally;
- ii. For punitive damages against the individual defendants in an amount to be determined at trial;
- iii. For reasonable attorneys' fees, together with costs and disbursements of this action, pursuant to 42 U.S.C. § 1988 and to the inherent powers of this Court;
- iv. For pre-judgment interest as allowed by law; and
- v. For such other and further relief as the court deems just and proper.

Dated: Brooklyn, New York
March 7, 2016

LAW OFFICE OF PHILIP AKAKWAM, P.C.

By: /s/
Philip Akakwam, Esq.
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15-cv-2804 (RRM)(SMG)

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Plaintiff

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CITY OF NEW YORK, P.O. ANDRE GRANT
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DETECTIVE STEVEN YATCHENYA

Defendants.

AMENDED COMPLAINT

LAW OFFICES OF PHILIP AKAKWAM, P.C.

Attorneys for Plaintiff
Office and Post Office Address
303 Livingston Street, 2nd Floor
Brooklyn, N.Y. 11217
(718) 858-2488

TO:

Service of a copy of the within is hereby admitted.

Dated:
